

contends the entire dispute underlying this case has “been completely extinguished” because Cross-Complainant previously executed a binding and valid settlement agreement with the HOA. Santos asserts the global settlement agreement included a full release of claims and Civil Code §1542 waiver. Santos argues the claims in the Cross-Complaint are mooted by the section 1542 waiver. The motion purports to include the section 1542 waiver as Exhibit A, but no document is attached. Santos filed a request for judicial notice asking the court to take judicial notice of the section 1542 waiver.

Plaintiff Pelayo opposes the motion. Pelayo explains at a Mandatory Settlement Conference in 2022, parties De Luz Ranchos HOA and its management company, Ralston Management Company, entered into a confidential settlement agreement with Santos to settle her claims against them. Pelayo was not a party to that settlement agreement. Pelayo contends this settlement agreement is the basis for Santos’ motion.

The very basis of the motion is improper. Cross-Complainant Santos moves for judgment on the pleadings of *her own pleading* – the Cross-Complaint. If Santos wishes to dismiss her Cross-Complaint, she can do so. A motion for judgment on the pleadings is unnecessary and improper.

It is possible Santos has simply confused the pleadings at issue. However, even if Santos is challenging Pelayo’s pleading, there is no basis for the motion. Santos has not demonstrated that the allegations in any pleading are insufficient to state a cause of action. Santos’ motion relies on a settlement agreement between Santos, De Luz Rancho Association, and Ralston Management. First, Pelayo is not a party to that agreement, so it has no bearing on Pelayo’s claims. Second, the copy of the settlement agreement Santos provided only includes signatures from Santos and Santos Ranch. It is not clear that this is, in fact, a valid and binding agreement between any parties based on the record before the court.

5.

CASE #	CASE NAME	HEARING NAME
CVSW2308832	HAIRE VS BARRAZA	DEMURRER ON CVME2406197

Tentative Ruling: OVERRULE the general demurrer to the 1st and 2nd causes of action. (C.C.P., § 430.10(e).)

SUSTAIN the misjoinder demurrer without further leave to amend. (C.C.P., § 430.10(d).

Plaintiffs allege that on 12/14/22, Plaintiff Andrew Lee Haire was driving westbound on Bryant Street, with Plaintiffs Emily Haire and Samuel Haire, when he entered the intersection of Palomar Street and he was struck by a vehicle driven by non-party Miguel Barraza. Defendants are the owners of properties located on Bryant Street, and Plaintiffs allege that the negligently maintained Bryan Street with overgrown vegetation such that it constituted a dangerous condition as it obstructed the view of Barraza. Plaintiffs filed this action on 12/13/24 and filed the operative Second Amended Complaint (SAC) on 12/29/25. The SAC asserts: (1) negligence; (2) negligence; and (3) loss of consortium.

Defendants Laurie Haven as Trustee of the Amended and Restated Judyth Marshel Trust and Amended and Restated Judyth Marshel Trust now demur to the 1st and 3rd cause so faction on the ground each fails to state facts sufficiently to constitute a claim. (C.C.P., §

430.10(e).) Plaintiffs allege that “Defendants TRUST” are owners of land located at 32476 Bryant Street, but Plaintiffs have failed to allege any specific condition at that property attributable to them that caused this incident. The separately named Trust also demurs on the ground there is a defect of parties since Trust is not a legal entity that can be sued any claim must be asserted, if at all, against the trustee in a representative capacity. (C.C.P., § 430.10(d); see also *Powers v. Ashton* (1975) 45 Cal.App.3d 783, 787.)

In opposition, Plaintiffs argue there was no adequate meet and confer as required. They state they did not file any timely opposition to the demurrer when set for the original hearing date because Defendant did not e-serve Plaintiffs’ paralegal and the only service went to counsel’s spam box. On the merits, they argue the complaint adequately alleges Defendants collectively failed to maintain adequate visibility along with multiple adjoining property owners and they are not required to allege a precise apportionment of fault at the pleading stage.

Code of Civil Procedure section 430.41 requires a meet and confer process via phone, videoconferencing, or in person at least 5 days before filing a demurrer. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (*Id.* at § 430.41(a)(1).) The moving party must file a declaration stating how the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (*Id.* at § 430.41(a)(3).) Here, the meet and confer was “initiated” the same day the demurrer was filed. (Shouhed Decl., ¶ 4.) The court continued the initial hearing from 4/7/26 and ordered the parties to engage in a code-compliant meet and confer. It does not appear any efforts were made to comply with the Court’s order to meet and confer.

Here, Plaintiffs have adequately alleged the 1st cause of action for negligence. (SAC, ¶¶ 14-27.) The SAC alleges the property owner defendants, of which Trust is included, collectively failed to maintain safe roadway conditions, failed to comply with roadway design standards, failed to maintain adequate visibility, failed to provide appropriate traffic control devices, and failed to warn motorists of dangerous conditions. Defendants cite to no relevant authority requiring more specificity of a negligence claim.

Defendants only demurrer to the 3rd cause of action for loss of consortium on the ground negligence is not adequately alleged. As discussed above, Plaintiffs have sufficiently stated their negligence cause of action.

Plaintiffs’ opposition is notably silent as to the misjoinder issue. A trust estate is not a legal entity; it is simply a collection of assets and liabilities. As such, it has no capacity to sue, be sued or defend an action. Any litigation must be maintained by, or against, the executor, administrator or trustee of the estate. (*Galdjie v. Darwish* (2003) 113 Cal.App.4th 1331, 1344.)

Here, while the SAC properly names Defendants Laurie Haven as Trustee of the Amended and Restated Judyth Marshel Trust as a defendant, it also separately names the “Amended and Restated Judyth Marshel Trust” as a defendant. A trust is not a proper defendant. Accordingly, the demurrer is sustained without leave to amend.